



**WYOMING RURAL PUBLIC TRANSIT PROGRAM FY 2016 SUBRECIPIENT
AGREEMENT
BETWEEN THE
WYOMING DEPARTMENT OF TRANSPORTATION
AND THE
CITY OF CHEYENNE, DBA CHEYENNE TRANSIT PROGRAM**

WYDOT Award Information	
CFDA No. Not Applicable	CFDA Title: State Transit Funds
Award Name: Wyoming Rural Public Transportation	Awarding Federal Agency: Not Applicable
Agreement No.: RPT-16-41	Project No.: FT16041
Recipient DUNS: 075758169	Recipient County: Laramie
WYDOT Program Mgr.: Talbot Hauffe	Telephone: (307) 777-4384 Email: talbot.hauffe@wyo.gov
WYDOT Contact for Confirmation of Funds: Barbara MacKenzie	Telephone: (307) 777-4039 Email: barbara.mackenzie@wyo.gov

- Parties.** The parties to this Agreement are the Wyoming Department of Transportation, hereinafter referred to as "WYDOT", whose address is 5300 Bishop Blvd., Cheyenne, WY 82009, and the City of Cheyenne, DBA Cheyenne Transit Program, hereinafter referred to as the "Recipient", whose address is 322 West Lincolnway, Cheyenne, WY 82001, and acting by and through Joe Dougherty, Director, its duly authorized representative.
- Purpose.** The purpose of this Agreement is to provide for the undertaking of transportation services to the general and special public (hereinafter referred to as "Project") by the Recipient and to state the terms, conditions and mutual understandings of the parties as to the manner in which the Project will be undertaken and completed.

WYDOT has been approved by Wyo. Stat. § 24-15-102 to administer these program funds in accordance with guidelines of the WYDOT State Management Plan and the Master Agreement with the Federal Transit Administration.

WYDOT and the Recipient desire to secure and utilize grant funds for the public transportation needs in small urban and rural areas in the State of Wyoming.
- Term of Agreement.** The Recipient shall commence and carry on the Project with all practical dispatch in a sound, economical and efficient manner. This Agreement is for the period of one year, commencing October 1, 2015 and ending September 30, 2016.
- In consideration of the mutual covenants herein set forth, WYDOT and the Recipient agree as to the following General Conditions**

- a. **Project Scope.** The Recipient shall undertake and complete the Project as described in its application, herewith incorporated by reference, filed with and approved by WYDOT in accordance with the terms and conditions of this Agreement.
- (i) To provide the fixed route system in the Cheyenne Area.
- b. **Project Allocation.** The total project allocation is \$198,533, comprised of \$112,290 State and \$86,243 Local Funding. These funds shall be borne in the manner described in the Grant Award Letter, included as Attachment "A" to this agreement. The Recipient agrees that it will provide from local and unrestricted Federal funds, monies in the amount sufficient together with the Grant to assure payment of the actual Project costs. The Recipient's eligible costs incurred shall be reimbursed on an approved WYDOT reimbursement request form. WYDOT reserves the right to request support documentation for any and all submittals. WYDOT will reimburse those eligible costs based on the program guidelines for the item categories and its appropriate reimbursement ratio. Requests for reimbursement shall be submitted monthly, but may not exceed quarterly submittals. Therefore, reimbursement requests for expenses more than three months removed from the reimbursement request submittal to WYDOT may not be processed for payment by WYDOT. Final invoices for payment will be accepted by WYDOT no later than the 15th of November of the following fiscal year of the Agreement. The basis for reimbursement shall be Operating: Federal 56.56 percent, Local 43.44 percent; Administration: Federal 80.00 percent, Local 20.00 percent; Maintenance: Federal 80.00 percent, Local 20.00 percent; and Capital: Federal 80.00 percent, Local 20.00 percent. The Recipient shall initiate and prosecute to completion all actions necessary to enable the Recipient to provide its share of the Project costs at or prior to the time that such funds are needed to meet Project costs.
- c. **Purchase of Project Equipment.** The purchase of all Project Equipment financed in whole or in part pursuant to this Agreement shall be undertaken by WYDOT on behalf of the Recipient or with prior WYDOT approval in accordance with the procedures established by WYDOT. Purchases of over \$1,000.00 using Federal or State funds will be subject to approval of WYDOT in accordance with established procedures.
- d. **Title to Project Equipment.** Title to Project Equipment shall be in the name of the Recipient subject to the restrictions on use and disposition of the Project Equipment set forth herein. The following notification shall be typed on the face of the title document of each vehicle by the County Clerk: "WYDOT Grant – Restricted." It is the responsibility of the Recipient to ensure the County Clerk is notified of this requirement.



- e. **Use of Project Equipment.** The Recipient agrees that the Project Equipment, and/or facilities, shall be used for the purpose for which it was acquired, as long as it is needed in the Project. If the Project Equipment is no longer needed, or cannot be used for the intended purpose; prior to selling or otherwise disposing of the Project Equipment, the Recipient shall immediately notify WYDOT. Before selling or otherwise disposing of the Project Equipment, the Recipient must receive a written letter from WYDOT allowing the sale or disposal. The Recipient shall not execute any lease, pledge, mortgage, lien, or other contract touching or affecting the Federal interest in any Project Equipment, nor shall it obligate itself in any other manner, with any third party with respect to the Project Equipment, unless such lease, pledge, mortgage, lien, contract, or other obligation is either in conformance with the standards of Federal Transit Administration (FTA) guidelines or is otherwise expressly authorized in writing by WYDOT; nor shall the Recipient or any other organization that obtains facilities or equipment through this Grant, by any act or omission of any kind, impair its continuing control over the use of Project Equipment. The Recipient shall maintain satisfactory records with regard to the use of the property and submit to WYDOT upon request such information as is required in order to assure compliance with this section. The Recipient shall immediately notify WYDOT in all cases where Project Equipment is used in a manner substantially different from that described in the Project description. The Recipient shall maintain an amount and form satisfactory to WYDOT such insurance or self-insurance as will be adequate to protect Project Equipment throughout the period of required use. The Recipient shall also submit to WYDOT, on a triennial basis, a certification that the Project Equipment is still being used in accordance with the terms of this section and that no part of the local contribution to the cost of the Project has been refunded or reduced. During the period of contract performance, the Recipient shall maintain the Project Equipment at a high level of cleanliness, safety and mechanical soundness. The Recipient shall maintain equipment in accordance to their approved Maintenance Plan adopted by its Board or Governing Body and on file with WYDOT. WYDOT and the FTA shall have the right to monitor maintenance records in order to confirm that proper upkeep has been conducted pursuant to this section.
- f. **Prohibited Interest.** No member, officer or employee of the Recipient during his tenure or one year thereafter shall have any interest, direct or indirect, in this Agreement or the proceeds thereof.
- g. **Restrictions, Prohibitions, Controls and Labor Provisions**
- (i) **Equal Employment Opportunity.** In connection with the carrying out of the Project, the Recipient shall not discriminate against any employee or applicant for employment because of race, color, age, creed, sex, national origin or disability. The Recipient shall take affirmative action to ensure that applicants are employed, and that employees are treated during employment, without regard to their race, color, creed, sex, age, national origin or disability. Such action shall include, but not be limited to, the



following: employment, upgrading, demotion or transfer, recruitment or recruitment advertising, layoff or termination; rates of pay or other forms of compensation; and selection for training, including apprenticeship.

(ii) Disadvantaged Business Enterprise (DBE) Requirements.

1. Policy. It is the policy of WYDOT that disadvantaged business enterprises, defined as Minority Business Enterprises and Woman Business Enterprises, shall have the maximum opportunity to participate in the performance of contracts financed in whole or in part with Federal funds under this Agreement. Consequently, the DBE requirements of 49 CFR Part 26 apply to this Agreement.

2. DBE Obligation. The Recipient or its contractor agrees to ensure that disadvantaged business enterprises as defined in 49 CFR Part 26 have the maximum opportunity to participate in the performance of contracts and subcontracts financed in whole or in part with Federal funds provided under this Agreement. In this regard, all Recipients shall take all necessary and reasonable steps in accordance with 49 CFR Part 26 to ensure that DBE's have the maximum opportunity to compete for and perform contracts. The Recipient and their contractors shall not discriminate on the basis of race, color, national origin, or sex in the award and performance of WYDOT assisted contracts.

(iii) Title VI Civil Rights Act of 1964. The Recipient shall comply and shall assure the compliance by contractors and subcontractors under this Project with all the requirements imposed by Title VI of the Civil Rights Act of 1964 (49 U.S.C. 2000d), the Regulations of the Department of Transportation (DOT) issued thereunder, 49 CFR Part 21, and the Assurance by the Recipient pursuant thereto.

(iv) Compliance with Elderly and Disabled Regulations. The Recipient shall comply with applicable regulations regarding transportation for Elderly and Disabled person, set forth in 49 CFR Part 27 and the Americans with Disabilities Act of 1990.

h. Motor Vehicle Safety

(i) Motor Vehicle Safety Standards. The motor vehicles will comply with the Motor Vehicle Safety Standards and Pollution requirements as established by the United States Department of Transportation.

(ii) Motor Vehicle Requirements. When new motor vehicles are purchased, there shall be obtained from each vendor a certification in writing that: "The horsepower of the vehicle is adequate for the speed, range and terrain in which it will be required to operate and also to meet the demands of all auxiliary power equipment."

i. Nondiscrimination On The Basis of Disability - 504 Regulations

(i) The Recipient shall ensure to WYDOT that persons with disabilities and groups representing them have had adequate notice of and opportunity to



comment on the present and proposed plans for providing transportation to disabled persons unable to use general public service.

- (ii) The Recipient must certify to WYDOT that special efforts are being made to provide transportation to eligible disabled persons. This service must be reasonable in cost, meet a significant fraction for such transportation needs, and be provided within a reasonable time.
- (iii) The Recipient is to submit a status report to WYDOT (updated every three years). The report must include:
 - 1. A description of the service to the disabled, as compared to the general public service.
 - 2. Copies or a summary of the comments received in response to the opportunity to comment.
 - 3. A statement of any plans to significantly modify the services.
 - 4. A statement of the resources devoted to the disabled service.

- j. **Safety Jurisdiction.** FTA requires that all Recipients operate their service in a safe manner and not allow any conditions to develop that “create a serious hazard of death or injury.”

Safety Training Classes are a **mandated requirement** of the Safety Jurisdiction clause. Driver Safety and Passenger Assistance Training (TSI) or equal approved training, ADA compliance training, and other technical training programs are required on a regular basis (as specified by the State Management Plan). The Wyoming Public Transportation Association (WYTRANS) may charge reasonable fees for the training. WYTRANS shall record all such program income, attendance (names and agencies) and costs. WYTRANS shall maintain records and files of this training information. The Recipient shall maintain independent employee training records for their file as well. The Recipient shall notify WYTRANS of any employee needed training to keep current with the requirements of this section. If safety violations are found and a Recipient fails to correct them, or comply with the training mandate, further financial assistance may be withheld.

- k. **Emergency Management.** All Recipients are required by WYDOT to cooperate and coordinate with Emergency Management agencies in their area during natural or man-made disasters. All FTA vehicles shall be used to transport people and/or equipment as directed by WYDOT. All Recipients shall use their communication equipment to insure timely evacuation of elderly and disabled people in their area.

- l. **Records and Reports**

- (i) **Establishment and Maintenance of Accounting Records.** The Recipient shall establish and maintain, in accordance with requirements established by WYDOT, separate accounts for the Project, either independently or within its existing accounting system, to be known as the Project Account.
- (ii) **Documentation of Project Costs.** All charges to the Project Account shall be supported by properly executed invoices, contracts or vouchers



evidencing in proper detail the nature and propriety of the charges, in accordance with the rules and regulations of WYDOT. Copies and/or supporting documentation of such invoices, contracts or vouchers may be included with monthly billing statements to cover all charges submitted for payment. The original documentation should be maintained by the Recipient in the Project file and must be available to WYDOT upon request.

- (iii) Checks, Orders and Vouchers. Any check or order drawn by the Recipient with respect to any item which is or will be chargeable against the Project Account will be drawn only in accordance with a properly signed voucher then on file in the office of the Recipient stating in proper detail the purpose for which such check or order is drawn. All checks, invoices, contracts, vouchers, orders or other accounting documents pertaining in whole or in part to the Project shall be clearly identified, readily accessible and, to the extent feasible, kept separate and apart from all other such documents.
- (iv) Reports. The Recipient shall advise WYDOT regarding the progress of the Project at such times and in such manner as WYDOT may require, including, but not limited to meetings and interim reports. The Recipient shall submit, accompanying the monthly reimbursement report, ridership data reports on approved WYDOT forms. Requests for reimbursement will not be processed for payment by WYDOT without a completed ridership data for the period of the reimbursement request. The Recipient shall submit to WYDOT, or its authorized representatives, an inventory of all vehicles, facilities, and equipment purchased by the Recipient as part of the Project, all transportation services rendered by the Recipient by the use of such vehicles, facilities and equipment, and all relevant Project data and records. The Recipient shall also permit the above-named persons to examine the books, records and accounts of the Recipient pertaining to the Project. If the Recipient has an audit performed for their own purposes, the Recipient agrees to provide WYDOT with a copy of such audit report. The Recipient shall keep records and audit reports on file for three years after the close of their fiscal year.

5. General Provisions

- a. **Amendments.** Either party may request changes in this Agreement. Any changes, modifications, revisions or amendments to this Agreement which are mutually agreed upon by and between the parties to this Agreement shall be incorporated by written instrument, executed and signed by all parties to this Agreement.
- b. **Americans with Disabilities Act.** The Recipient shall not discriminate against a qualified individual with a disability and shall comply with the Americans with Disabilities Act, P.L. 101-336, 42 U.S.C. 12101, *et seq.*, and/or any properly promulgated rules and regulations related thereto.



- c. **Applicable Law and Venue.** The construction, interpretation and enforcement of this Agreement shall be governed by the laws of the State of Wyoming. The Courts of the State of Wyoming shall have jurisdiction over this Agreement and the parties, and the venue shall be in the First Judicial District, Laramie County, Wyoming.
- d. **Assignment/Agreement Not Used as Collateral.** Neither party shall assign nor otherwise transfer any of the rights or delegate any of the duties set forth in this Agreement without the prior written consent of the other party. The Recipient shall not use this Agreement, or any portion thereof, for collateral for any financial obligation without the prior written permission of WYDOT.
- e. **Assumption of Risk.** The Recipient shall assume the risk of any loss of state or federal funding, either administrative or program dollars, due to its failure to comply with state or federal requirements. WYDOT will notify the Recipient of any state or federal determination of noncompliance.
- f. **Audit/Access to Records.** The Recipient may be subject to monitoring activities by WYDOT including on-site visits, review of supporting documents, and limited scope audits. The Recipient shall permit independent auditors, Federal personnel and WYDOT auditors, access to any pertinent books, documents, papers, and records necessary to perform monitoring of activities. The Recipient shall keep audit reports and audit documents on file for three years after the project is complete.
- g. **Availability of Funds.** Each payment obligation of WYDOT is conditioned upon the availability of government funds which are appropriated or allocated for the payment of this obligation. If funds are not allocated and available for the continuance of the services performed by the Recipient, this Agreement may be terminated by WYDOT at the end of the period for which the funds are available. WYDOT will notify the Recipient at the earliest possible time of the services which will or may be affected by a shortage of funds. No penalty shall accrue to WYDOT in the event this provision is exercised, and WYDOT will not be obligated or liable for any future payments due or for any damages as a result of termination under this section. This provision shall not be construed to permit WYDOT to terminate this Agreement in order to acquire similar services from another party.
- h. **Compliance with Law.** The Recipient shall keep informed of and comply with all applicable, Federal, State and local laws and regulations in the performance of this Agreement.
- i. **Contracts Under this Agreement.** Unless otherwise authorized in writing by WYDOT, the Recipient shall not assign any portion of the work to be performed under this Agreement, or execute any contract, amendment or change order



thereto, or obligate itself in any manner with any third party with respect to its rights and responsibilities under this Agreement without the prior written concurrence of WYDOT.

- j. **Entirety of Agreement.** This Agreement, consisting of 13 pages, Attachment "A", consisting of one page, and Attachment "B", consisting of one page, represents the entire and integrated Agreement between the parties and supersedes all prior negotiations, representations and agreements, whether written or oral.
- k. **Indemnification.** Each party to this Agreement shall be responsible for any liability arising from its own conduct. Neither party agrees to insure, defend or indemnify the other.
- l. **Kickbacks.** The Recipient certifies and warrants that no gratuities, kickbacks or contingency fees were paid in connection with this Agreement, nor were any fees, commissions, gifts, or other considerations made contingent upon the award of this Agreement. If the Recipient breaches or violates this warranty, WYDOT may, at its discretion, terminate this Agreement without liability to WYDOT, or deduct from the Agreement prices or consideration, or otherwise recover, the full amount of any commission, percentage, brokerage, or contingency fee.
- m. **Nondiscrimination.** The Recipient shall comply with the Civil Rights Act of 1964, the Wyoming Fair Employment Practices Act (Wyo. Stat. § 27-9-105 *et seq.*), the Americans with Disabilities Act (ADA), 42 U.S.C. 12101, *et seq.* and the Age Discrimination Act of 1975. The Recipient shall not discriminate against any individual on the grounds of age, sex, color, race, religion, national origin or disability in connection with the performance of this Agreement. In reference to Title VI Policy, WYDOT's Civil Rights Program is responsible for initiating and monitoring Title VI activities, preparing required reports and the WYDOT responsibilities as required by 23 Code of Federal Regulations (CFR) 200 and 49 CFR 21.
- n. **Notices.** All notices arising out of, or from, the provisions of this Agreement shall be in writing and given to the parties at the address provided under this Agreement, either delivered by hand or certified mail.
- o. **Prior Approval.** This Agreement shall not be binding upon either party unless this Agreement is approved as to form by the Attorney General or his representative.
- p. **Publicity.** Publicity given to the project or services provided herein, including notices, information, pamphlets, press releases, research, reports, signs, and similar public notices prepared by or for the City and related to the services and work to be performed under this Agreement, shall identify WYDOT as the sponsoring agency and shall provide a copy of what was shared with WYDOT.



- q. Severability.** Should any portion of this Agreement be judicially determined to be illegal or unenforceable, the remainder of this Agreement shall continue in full force and effect, and either party may renegotiate the terms affected by the severance.
- r. Sovereign Immunity.** The State of Wyoming, WYDOT and the recipient do not waive their sovereign or governmental immunity by entering into this Agreement, and specifically retain immunity and all defenses available to them as sovereigns pursuant to Wyo. Stat. § 1-39-104(a) and all other State law. The parties agree that any ambiguity in this Agreement shall not be strictly construed, either against or for either party, except that any ambiguity as to sovereign immunity shall be construed in favor of sovereign immunity.
- s. Termination.**
- (i) For Convenience. WYDOT may terminate the Project and cancel this Agreement if both parties agree that the continuation of the Project would not produce beneficial results commensurate with the further expenditure of funds.
 - (ii) With Cause. WYDOT may, by written notice to the Recipient, terminate the Project and cancel this Agreement for any of the following reasons:
 - 1. The Recipient discontinues the use of such vehicles, equipment or facilities during their useful lives for the purpose of providing public or special public transportation services;
 - 2. The Recipient takes any action pertaining to this Agreement without the approval of WYDOT and which under the procedures of this Agreement would have required the approval of WYDOT;
 - 3. The commencement, prosecution or timely completion of the Project by the Recipient is, for any reason, rendered improbable, impossible or illegal;
 - 4. The Recipient shall be in default under any provision of this Agreement.
 - (iii) Action Upon Termination. Upon termination of the Project and cancellation of this Agreement under the provisions of Paragraph (i) and (ii) of this Article, the Recipient agrees to dispose of the project equipment in accordance with WYDOT procedures.
- t. Third Party Beneficiary Rights.** The parties do not intend to create in any other individual or entity the status of third party beneficiary, and this Agreement shall not be construed so as to create such status. The rights, duties and obligations contained in this Agreement shall operate only between the parties to this Agreement and shall inure solely to the benefit of the parties to this Agreement. The provisions of this Agreement are intended only to assist the parties in determining and performing their obligations under this Agreement.

The terms of this Agreement, and any amendments thereto, shall be binding upon and inure to the parties hereto, their administrators and successors.



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6. **Signatures.** In witness whereof, the parties to this Agreement, either personally or through their duly authorized representatives, have executed this Agreement on the days and dates set out below and certify that they have read, understood, and agreed to the terms and conditions of this Agreement.

The effective date of this Agreement is the day and date last signed and executed by the duly authorized representatives of the parties to this Agreement, below.

ATTEST:

Name

Title

(SEAL)

**CITY OF CHEYENNE, DBA
CHEYENNE TRANSIT PROGRAM:**

By: _____
Name, Title

Date

ATTEST:

Sandra J. Scott, Secretary
Transportation Commission of Wyoming

(SEAL)

**WYOMING DEPARTMENT OF
TRANSPORTATION:**

By: _____
Gregg C. Fredrick, P.E., Assistant
Chief Engineer – Planning and Engineering

Date

Approved as to form:

By: _____
Senior Assistant Attorney General
State of Wyoming





Matthew H. Mead
Governor

Wyoming Department of Transportation

"Providing a safe, high quality, and efficient transportation system"

5300 Bishop Boulevard
Cheyenne, Wyoming 82009-3340



John F. Cox
Director

August 4, 2015

Joe Dougherty, Director

City of Cheyenne DBA Cheyenne Transit Program
322 West Lincolnway
Cheyenne, WY 82001

RE: Fiscal Year 2016 Rural Public Transit Program – State Rural Public Transit – State Funds

Dear Joe,

Enclosed you will find your Fiscal Year 2016 Wyoming Rural Public Transit Program Agreement for the benefit of City of Cheyenne DBA Cheyenne Transit Program.

Operating	Administration	Maintenance	Capital	Total
\$ 112,290	\$ 0.00	\$ 0.00	\$ 0.00	\$ 112,290

The total State contribution is \$112,290 comprised of \$112,290 in State Rural Public Transit funds for Operating. The total project allocation is \$198,533 with the combined \$112,290 State and \$86,243 Local contribution. In awarding FY2016 budgets, WYDOT-LGC considered ridership, expenditures of past budgets and the agencies participation in the Coordinated Transit Planning process. Limited Capital requests were awarded for FY2016. **If you were awarded Capital in your FY2016 budget, you must contact this office prior to purchasing capital goods. If you have capital needs and were not funded under this program, please contact this office.** To allow for flexibility within your budgets, line item dollar amounts were not assigned within the funding categories, with the exception of awarded Capital Items as outlined in the Project Agreement, but will be monitored by WYDOT-LGC when the bills are submitted for payment. **FOR FY2016, ANY BILL NOT RECEIVED WITHIN 45 DAYS OF THE END OF THE QUARTER WILL NOT BE PAID.** Contact this office if circumstances prevent you from meeting this requirement. It is still preferred to bill monthly for record keeping and reporting purposes.

Please be sure to sign the original Agreements and attachments as appropriate. Also, if a signed copy of the Authorizing Resolution is not in our office, be sure to forward this to our office prior to billing for FY2016. **When the FY2016 Certifications & Assurances are available, they will be sent out for signature. We will return copies of the information to you when all signatures are received.**

Thank you in advance for your assistance, we look forward to working with you throughout the coming Fiscal Year.

Sincerely,

Talbot Hauffe
Transit Program Coordinator

Enclosure(s)

FY 2016 BUDGET AWARD for

Cheyenne Transit

	\$112,290
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AMOUNT AWARDED:

BUDGET CATEGORY	TOTAL PROPOSED BUDGET	TOTAL LOCAL PROPOSED BUDGET REQUEST	TOTAL WYDOT PORTION OF PROPOSED BUDGET REQUEST
OPERATING	\$ 198,533	\$ 86,243	\$ 112,290
ADMINISTRATION	\$ -	\$ -	
MAINTENANCE	\$ -	\$ -	
TOTAL BUDGET	\$ 198,533	\$ 86,243	\$ 112,290
Discrepancy in Amount Awarded and Total Budget	TRUE	\$0	Must Equal Zero
Administration Under 40% of Total budget	TRUE	0.00%	Must be under 40%